GUAM RULES AND REGULATIONS

TITLE 26

PUBLIC HEALTH AND SOCIAL SERVICES

(UPDATED THROUGH NOVEMBER 9, 2021)

TABLE OF CONTENTS

DIVISION 1
DIRECTOR OF PUBLIC HEALTH AND SOCIAL SERVICES
(DEPARTMENT OF PUBLIC HEALTH AND SOCIAL SERVICES)

Chapter 1. Welfare Division.
- Article 1. Child Welfare Services Act.
- Article 2. Food Stamp Program.
- Article 3. Adoption.
- Article 4. Maternal Child Health Program.
- Article 5. Investigation and Recoupment Office.
- Article 6. Catastrophic Illness Assistance Program.
- Article 7. General Assistance Manual.
- Article 8. Eligibility and Payment Manual. Appendices.
- Article 9. Foster Family Homes.

Chapter 2. Vital Statistics.

Chapter 3. Food and Drug.

Chapter 4. Public Health and Sanitation.
- Article 1. Zoonosis Control Section - Dog Control.
- Article 2. World Health Organization - "International Health Regulation".
- Article 3. Commercial Quarantine Regulations.
- Article 4. Health Certificate Regulations.
- Article 5. Sanitary Permits.
- Article 6. Public Swimming Pools.
- Article 7. School Sanitation.
- Article 8. Bakeries.
- Article 9. Cosmetology.
- Article 10. Hotels and Motels.
- Article 11. Laundry and Dry Cleaning.
- Article 12. Massage Parlors.
- Article 13. Tattoo Shops.
- Article 14. Garbage Feeding.
- Article 15. Retail Food Store Sanitation.
- Article 16. Rules Governing the Manufacture, Distribution, and Dispensing of Controlled Substances.
- Article 17. Temporary Workforce Housing Regulations.
- Article 18. The Guam Prescription Drug Monitoring Program.

Article 19. The Construction, Operation and Maintenance of Cemeteries.
Article 19A. Merizo Public Cemetery.
Article 20. Rules and Regulations Governing Chemical Toilets.
Article 21. Guam Food Code.
Article 22. [Reserved.]
Article 23. [Reserved.]
Article 24. [Reserved.]
Article 25. [Reserved.]
Article 26. [Reserved.]
Article 27. [Reserved.]
Article 28. Regulations Governing the Enforcement of Public Health Guidance Memoranda and Directives During the COVID-19 Public Health Emergency.

Chapter 5. Fortified Rice.

Chapter 6. Hospital and Medical Facilities.
Article 1. Public Health and Services Act. (No rules filed.)
Article 2. Ambulance and Emergency Medical Technician.
Article 3. Nursing Homes and Nursing Home Fee.
Article 4. U.S. Public Health Services Act, and Health Resources and Services Administration (HSRA) Program Guidelines, Requirements and Regulations for Federally Qualified Community Health Centers.

Chapter 7. Maternal and Child Health and Crippled Children.

Chapter 8. Public Health Services.

Chapter 9. Social Services.
Article 1. Standards of Assistance (Old Age Assistance, Aid to Families with Dependent Children, Aid to the Blind, Aid to Permanently and Totally Disabled).
Article 2. Day Care Centers for the Elderly and Disabled Adults.
Article 3. Medically Indigent Program.

Chapter 10. Procedures for Isolation and Quarantine.

Chapter 11. The Joaquin (KC) Concepcion II Compassionate Cannabis Use Act of 2013.
Article 1. Qualified Patients and Primary Caregivers.

Article 2. Responsible Official, Medical Cannabis License, and Permit to Operate.
Article 3. Administrative Requirements.

DIVISION 2
GUAM MEMORIAL HOSPITAL

Chapter 15. Board of Trustees.
Article 1. Fees.
Article 2. Abatement Policy and Procedure.
Article 3. Hospitalization of Mentally Ill.
Article 4. End-Stage Renal Disease Patient.

Chapter 16. Procurement Regulations.
Article 1. General Provisions.
Article 2. Procurement Organization.
Article 3. Source Selection and Contract Formulation.
Article 4. Specifications.
Article 5. Procurement of Construction and Services.
Article 6. Modification and Termination of Contracts for Supplies and Services.
Article 7. Cost Principles.
Article 8. Supply Management.
Article 9. Legal and Contractual Remedies.
Article 10. Compliance With Federal Requirements.
Article 11. Ethics in Public Contracting.

Chapter 17. Credit and Collection.

DIVISION 3
COMMISSION ON POST-MORTEM EXAMINATIONS

DIVISION 4
COMMUNITY ACTION AGENCY

DIVISION 5
GUAM HEALTH PLANNING & DEVELOPMENT AGENCY

Chapter 30. Procedures for Appropriateness Review.

Chapter 31. Certificate of Need Regulations.
Article 1. Certificate of Need Regulations.
Article 2. Certificate of Need Review Procedures.Article 3. Post Decision Procedures.

DIVISION I
DIRECTOR OF PUBLIC HEALTH AND SOCIAL SERVICES (DEPARTMENT OF PUBLIC HEALTH AND SOCIAL SERVICES)

Chapter 1. Welfare Division.
Chapter 2. Vital Statistics.
Chapter 3. Food and Drug.
Chapter 4. Public Health and Sanitation.
Chapter 5. Fortified Rice.
Chapter 6. Hospital and Medical Facilities.
Chapter 7. Maternal and Child Health and Crippled Children.
Chapter 8. Public Health Services.
Chapter 9. Social Services.

CHAPTER 1
WELFARE DIVISION

SOURCE: Added by P.L. 31-73:5 (June 2, 2011).

2015 NOTE: Subsection/subitem designations added/deleted/altered pursuant to authority granted by 1 GCA § 1606.

NOTE: Rule making authority cited for formulation of licensing regulations for the Child Welfare Services Act by the Director of Public Health and Social Services, 10 GCA §02403.

Article 1. Child Welfare Services Act.
Article 2. Food Stamp Program.
Article 3. Adoption.
Article 4. Maternal Child Health Program.
Article 5. Investigation and Recoupment Office.
Article 6. Catastrophic Illness Assistance Program.
Article 7. General Assistance Manual.
Article 8. Eligibility and Payment Manual.

APPENDICES
Appendix A. Guam's Plan for Professional Development.
Appendix B. Guam Early Learning Guidelines for Birth to 36 Months, and, Three to Five Years Old.
Appendix C. Current Fee Schedule.

Appendix D. 2008 U.S. Immunization Schedule.
Appendix E. Food Guide Pyramid for Young Children.
Appendix F. Handbook for Public Playground Safety.
Appendix G. [Reserved Pending Promulgation]

ARTICLE 1
CHILD WELFARE SERVICES ACT
RULES AND REGULATIONS FOR LICENSED CHILD CARE FACILITIES AND GROUP CHILD CARE HOMES

SOURCE: Adopted by P.L. 31-073:2 (June 2, 2011).

§ 1101. General Provisions.
§ 1101.1. Purpose.
§ 1101.2. Applicability.
§ 1101.3. Authority.
§ 1101.4. Title.
§ 1101.5. Definitions.
§ 1102. License to Operate a Child Care Facility.
§ 1102.1. License Required.
§ 1102.2. Exclusions.
§ 1102.3. Application for License.
§ 1102.4. Application Packet.
§ 1102.5. General Information Requirements.
§ 1102.6. Issuance of License.
§ 1102.7. Effective Date of License.
§ 1102.8. Changes to Operation of the Child Care Facility.
§ 1102.9. Advertising.
§ 1102.10. Displaying License.
§ 1102.11. Right of Entry, Inspection, and Investigation.
§ 1102.12. Inspection Frequency.
§ 1102.13. Report of Inspections.
§ 1102.14. Posting.
§ 1102.15. License Fees.
§ 1103. Organization.
§ 1103.1. General.
§ 1104. Health and Safety.
§ 1104.1. General.
§ 1105. Program Requirements.
§ 1105.1. General.
§ 1106. Staff to Child Ratio.

§ 1106.1. General.
§ 1106.2. Existing Child Care Facilities.
§ 1106.3. New Child Care Facilities.
§ 1107. Admissions.
§ 1107.1. General.
§ 1107.2. Illness and Communicable Disease Control.
§ 1107.3. Immunizations.
§ 1107.4. Testing for Tuberculosis.
§ 1107.5. CPR and First Aid.
§ 1107.6. Medication.
§ 1107.7. Food and Nutrition.
§ 1108. Materials and Equipment.
§ 1108.1. General.
§ 1108.2. Storage Spaces.
§ 1108.3. Sleeping Equipment and Bedding.
§ 1109. Personnel.
§ 1109.1. General.
§ 1109.2. Information on Current Staff Members Inclusive of Cooks and Maintenance Personnel.
§ 1109.3. Responsibilities and Qualifications for Early Childhood Director.
§ 1109.4. Responsibilities and Qualifications for Early Childhood Assistant Director.
§ 1109.5. Requirements of Staff Members.
§ 1110. Group Child Care Homes.
§ 1110.1. Group Child Care Homes.
§ 1111. Reporting Requirements.
§ 1111.1. Reporting Child Abuse and Neglect.
§ 1111.2. Reporting Licensing Complaints.
§ 1112. Display of Documents.
§ 1112.1. General.
§ 1113. Records Open to the Public
§ 1113.1. Public Documents.
§ 1114. Transportation Provisions.
§ 1114.1. General.
§ 1115. Communication Between Parents and Early Childhood Providers.
§ 1115.1. General.
§ 1116. Parental Accessibility.
§ 1116.1. General.

§ 1116.2. Refraining from Releasing Children to Family.
§ 1117. Non-Discrimination.
§ 1117.1. General.
§ 1118. Denial, Suspension, or Revocation of License.
§ 1118.1. Denial, Suspension, or Revocation of License.
§ 1118.2. Effect.
§ 1118.3. Suspension in an Emergency.
§ 1118.4. Follow Up to Enforcement Action.
§ 1119. Right to Appeal.
§ 1119.1. General.
§ 1120. Hearing.
§ 1120.1. General.
§ 1121. Serving of Notices.
§ 1121.1. General.
§ 1122. Severability.
§ 1122.1. General.
§ 1123. Child Care Fund.
§ 1123.1. Child Care Revolving Fund; No Commingling.
§ 1123.2. Expenditures from the Fund.
§ 1123.3. No Transfer Authority.
§ 1124. Review.
§ 1124.1. General.

APPENDICES
Appendix A. Guam's Plan for Professional Development.
Appendix B. Guam Early Learning Guidelines for Birth to 36 Months, and, Three to Five Years Old.
Appendix C. Current Fee Schedule.
Appendix D. 2008 U.S. Immunization Schedule.
Appendix E. Food Guide Pyramid for Young Children.
Appendix F. Handbook for Public Playground Safety.
Appendix G. [Reserved Pending Promulgation]

§ 1101. General Provisions.

§ 1101.1. Purpose.

The purpose of these rules and regulations is to formulate standards for licensed child care facilities and group child care homes that will protect and promote the welfare and positive development of children being served.

§ 1101.2. Applicability.

(a) These rules and regulations are applicable to the following child care licensees, public and private:

(1) child care facilities; and

(2) group child care homes.

(b) These rules and regulations do not apply to Group Family Home, Family Child Care Home, Family Foster Home, and Residential Treatment Facility.

§ 1101.3. Authority.

The Guam Code Annotated authorizes the Department to adopt rules and regulations for licensing all child care facilities, to issue licenses, and to ensure that all provisions of § 2407 of Title 10 GCA, Chapter 2, Article 4 (Public Law 11-99) regarding licensing are carried out. The Department shall inspect all child care facilities as defined in § 1101.5(f). The Department shall, pursuant to the provisions of the Administrative Adjudication Law, adopt minimum standards for licensing. Such standards shall be applicable to all child care facilities, including those operated by the Department, and shall pertain to the following:

(a) the operation and conduct of the facility and responsibility it assumes for child care;

(b) the character, suitability and qualifications of the applicant and other persons directly responsible for the care and welfare of children served;

(c) the general financial ability and competence of the applicant to provide necessary care for children and to maintain prescribed standards;

(d) the number of individuals or staff required to ensure adequate supervision and care of the children received;

(e) the appropriateness, safety, cleanliness and general adequacy of the premises, including maintenance of adequate fire prevention and health standards in conformance with existing Guam laws to provide for the physical comfort, care and well-being of children received;

(f) provisions for food, clothing, educational opportunities, programs, equipment and individual supplies to assure the healthy physical, mental and spiritual development of children served;

(g) provisions to safeguard the legal right of children served;

(h) maintenance of records pertaining to the admission, progress, health and termination of care of children;

(i) filing of records with the Department;

(j) discipline of children; and

(k) protection and fostering of the children served.

§ 1101.4. Title.

These rules and regulations shall be known and may be cited as the "Rules and Regulations for Licensed Child Care Facilities and Group Child Care Homes."

§ 1101.5. Definitions.

Wherever the following words appear in these rules and regulations, they shall have the following definitions:

(a) Appeal means a written, signed and dated statement requesting reconsideration or modification of a Departmental decision that negatively affects the license of the child care facility. An appeal is made by the licensee or by the facility's legal entity.

(b) Child means a person under eighteen (18) years of age, *or* a child with a disability up to twenty-one (21) years of age.

(c) Early Childhood Assistant means any person that provides assistance to the teacher who provides primary care for children.

(d) Early Childhood Assistant Director means a person who assists the Early Childhood Director in the management of a child care facility and/or who has the responsibility to administer the facility and to develop the total program in the

absence of the Early Childhood Director.

(e) Early Childhood Director means a person having responsibility in the management and administration of the facility, and to develop the total program.

(f) Child care facility means any facility or home licensed by the Department to provide care, education, and supervision for twelve (12) or more children for all or part of a twenty-four (24) hour day, whether or not the facility is operated for profit, or charges for the services it offers.

(g) Cook means any person who prepares meals for children enrolled in a child care facility.

(h) Department means the Guam Department of Public Health and Social Services.

(i) Denial means refusal by the Director to issue a license on a new or renewal application.

(j) Director means the Director of Public Health and Social Services or his/her authorized representative.

(k) Division means the Division of Public Welfare, Department of Public Health and Social Services.

(l) Early childhood provider means a person employed for compensation, and with the knowledge, skills, and abilities in early childhood education, and who is responsible for the physical well-being, direct care, health, safety, supervision, and guidance of children in child care. Education and experience in working with children birth to five (5) years old differentiate the various levels of Initial, Lead and Master Provider. (refer to Appendix A)

(m) Group Child Care Home means a home or facility which provides child care for at least seven (7), and not more than twelve (12) children, during all or part of a twenty-four (24) hour day. The Director may waive the maximum capacity of twelve (12) children for a Group Child Care Home for the emergency or temporary placement of children in the protective custody of Child Protective Services.(n) Guam Early Learning Guidelines for Young Children Birth

to Thirty-six (36) Months and Ages Three (3) to Five (5) means the voluntary early learning guidelines of what young children birth to five (5) years old should know and be able to do. (Appendix B)

(o) Guam's Plan for Professional Development (Appendix A) means the early childhood education plan, as required by Executive Order 2004-14, and part of Guam's Comprehensive Plan for the Care & Education of Young Children. (Appendix A).

(p) Guardian means the legal guardian of the person of a minor.

(q) Individualized Education Program means the document, commonly referred to as an IEP, describing the child's educational program as required by the Guam Department of Education, Division of Special Education under the Individuals with Disabilities Education Improvement Act of 2004 (IDEA), Part B to develop for every student with a disability who is found to meet the federal and state requirements for special education, designed to provide the child with a free and appropriate public education.

(r) Individualized Family Service Plan means the document, commonly referred to as an IFSP, that identifies the child's and family's individualized supports and early intervention services that will enhance the child's overall development, as required by the Guam Department of Education, Division of Special Education under the Individuals with Disabilities Education Improvement Act of 2004 (IDEA), Part C for infants and toddlers with disabilities and their families.

(s) Individuals With Disabilities Education Improvement Act of 2004 means the United States federal law that governs how states and public agencies provide early intervention, special education, and related services to children with disabilities.

(t) Infant means a child from birth through twelve (12) months of age.

(u) License means a license to operate a child care facility.

(v) License to operate a child care facility (hereafter referred to as "License") means the official document issued by the Department authorizing the operation of a child care facility as defined under the terms of the license. This is issued to a child care facility that has met compliance with the minimum requirements as defined in the licensing laws, rules and regulations for the duration of two (2) calendar years.

(w) Licensee means any entity that is issued a license by the Department.

(x) Maintenance personnel means any person who provides general maintenance or upkeep of the child care facility.

(y) Performing arts studio shall mean any facility which provides a performing arts curriculum for children ages two (2) years and up, for twelve (12) or more children, during a portion of a twenty-four (24) hour day.

(z) Practicum student means any person officially enrolled in any higher educational institution as a student in education, nursing, psychology, social work, early childhood, or related fields with approved practicum under supervision by an instructor and who adheres to a child care facility's policies and procedures.

(aa) Person means any person or persons, group of persons, agencies, associations, organizations, whether public, private or incorporated.

(bb) Preschooler means a child who is three (3) years to four and a half (4½) years of age.

(cc) Provisional license means a temporary license issued by the Department at the time of a new application or renewal when the facility does not meet all licensing laws, rules and regulations for the duration not to exceed six (6) months.

(dd) Related means any of the following relationships by blood, marriage or adoption: parent, grandparent, brother, sister, stepparent, stepsister, uncle or aunt.

(ee) Revocation means immediate rescission of a license when the facility exhibits a pattern of non-compliance or an imminent concern arises that jeopardizes the well-being of children.

(ff) School age means a child who is between the age of four and a half (4½) years and twelve (12) years old.

(gg) Staff member means any person that is employed for compensation or otherwise by the child care facility, and is on the premises while children are provided care. This includes, but is not limited to: Early Childhood Director, Early Childhood Assistant Director, Teachers, Early Childhood Providers, and Teachers' Aides.

(hh) Suspension means the deferment of a license for an issue of non-compliance that may be temporary.

(ii) Toddler means a child who is thirteen (13) months through thirty-six (36) months of age.

(jj) Visito*r* means a person visiting for a brief period of time, and who follows the facility's policies and procedures.

(kk) Volunteer means a person offering services to a child care facility without remuneration, except for reimbursable personal expenses allowed by the early childhood providers.

SOURCE: Adopted by P.L. 31-073:2 (Jun. 2, 2011). Subsection (m) amended by P.L. 35-035:2 (Sept. 4, 2019).

§ 1102. License to Operate a Child Care Facility.

§ 1102.1. License Required.

(a) Any person, association, corporation, or partnership shall first obtain a license from the Department to operate a child care facility, providing services either with or without compensation.

(b) Any person, association, corporation, or partnership found to be operating or conducting a child care facility without a

license shall be found in violation of these rules and regulations and must cease operations immediately until compliance is met.

(c) Before a license is granted, the applicant must certify its compliance with local officials according to all applicable health, safety, fire, building, and sanitation regulations using a certification of compliance form provided by the Department.

§ 1102.2. Exclusions.

(a) No license is required for the following:

(1) For the care by a relative, with or without compensation, where the person furnishing such care does not regularly engage in such activity, and does not advertise or hold him/herself out as conducting a child care facility;

(2) For the care by parents who, on a mutually cooperative basis, exchange one another's children;

(3) For the care of children in their own home;

(4) For the care of children in a hospital or clinic;

(5) For the care of children in the following educational-type facilities:

(A) An accredited public or private educational institution that operates primarily for educational purposes for those children in grades kindergarten through twelfth (12th) grade. In the event such accreditation does not include early childhood classrooms for those children below kindergarten (i.e., birth to five [5] years), then the educational institution must comply with these rules and regulations and will fall under the jurisdiction of these rules and regulations;

(B) a preschool classroom that is regulated by the Guam Department of Education or the Administration for Children and Families that adhere to federal guidelines and/or mandates, such as the Head Start Performance Standards;

(C) an after-school care program operated directly by an accredited public or private educational facility;

or

(D) an after-school care program operated by another entity under contract with the educational facility and the curriculum content of the after-school program is approved by the Guam Department of Education;

(6) for the temporary care of children in facilities operating in a shopping center, fitness center, hotel, or establishment during any part of a twenty-four (24) hour day, while parents or persons responsible for the children are attending services or engaging in other activities who remain and are on the premises, and care is *not* on a regular basis;

(7) for the temporary care of children during any part of a twenty-four (24) hour day while parents remain and are on the premises participating in religious functions, and care is *not* on a regular basis;

(8) for camps held on a seasonal basis where children are in temporary care during any part of a twenty-four (24) hour day;

(9) for the care of children in child care facilities regulated by the U.S. Department of Defense (i.e., Military Child Care Facilities); and

(10) for skills programs and performing arts programs that teaches a talent, abilities, expertise or proficiency that is not a part of a school, child day care or after school daycare operation; and that the program does not provide primary child care.

(b) The exclusions of this Section do not affect the authority of state and federal governments to inspect any child care facilities and/or private property for compliance.

(c) Child care facilities that meet the criteria for exclusions as stated in this § 1102.2 shall provide the Department with documentation, such as the most current monitoring report, assuring that their facility has passed inspection and/or requirements by their respective accrediting institution or regulatory agency, as applicable.

§ 1102.3. Application for License.

(a) The application to obtain a license or the renewal of a license shall be made on forms approved and supplied by the Department, and shall be completed and submitted within a minimum of sixty (60) business days prior to the proposed opening date or the date of expiration of the license.

§ 1102.4. Application Packet.

(a) The application packet shall include, but is not limited to, the following:

(1) An application form, which shall include information on owner or licensee. The following information shall be supplied to the Division:

(A) The business name, mailing and physical address, and telephone number of the child care facility;

(B) The name, date of birth, business mailing and physical address, and business telephone number of the person(s) bearing the responsibility for the child care facility;

(C) The name, date of birth, business mailing and physical address, and business telephone number of the person(s) having specific authority and responsibility for overall administration and the services offered;

(D) The name and date of birth of the owner or sponsoring agency (i.e., privately owned, church or agency owned) of the child care facility; and

(E) Other information as required by the Division;

(2) Current copy of the "Rules and Regulations for Licensed Child Care Facilities and Group Child Care Homes";

(3) Copy of applicable child care laws (i.e., Title 10 Guam Code Annotated, Chapter 2, Article 4, Child Welfare Services Act);

(4) Staffing pattern form;

(5) Physician's certification of examination form;

(6) Notice of requirement for submission of documentation, to include police and court clearances for each staff member in the child care facility and a signed consent of release form for the Department to conduct checks in local and national registries to include, but not be limited to: the Child Abuse and Neglect Registry; the Sex Offender Registry; and any other national background checks as deemed necessary by the Department to ensure the staff's or prospective staff's capacity to provide safe and constructive child care. For Group Child Care Homes, all other adult members living in the home must also comply with these clearances and background checks.

(7) Three (3) separate character reference letters for Early Childhood Directors, for initial or denied applicants, or applicants seeking license reinstatement of a suspended or revoked license; and

(8) Certification of compliance form.

(b) The applicant shall provide and submit documents, not limited to the following:

(1) Early childhood education transcripts (for the Early Childhood Director and Early Childhood Assistant Director);

(2) Verification of early childhood training for staff (i.e., training certificates, transcripts);

(3) A copy of the child care facility's policies and procedures;

(4) A copy of the floor plan layout of the child care facility;

(5) A copy of the parent's handbook;

(6) Resume for the Early Childhood Director and Early Childhood Assistant Director;

(7) Pediatric cardio pulmonary resuscitation (CPR) and pediatric first aid certificates;

(8) A copy of each staff member's health certificate

issued by the Division of Environmental Health of this Department;

(9) Most recent copy of the Job-Site Inspection report issued by the Division of Environmental Health of this Department;

(10) A copy of the sanitary permit(s) for the child care facility upon issuance by the Division of Environmental Health of this Department; and

(11) A copy of immunization records for children enrolled.

(c) At no time shall an incomplete application package (for new, renewal, or amendment of licenses) be received by any staff of the Department.

(d) Applicants shall seek and comply with required applicable rules and regulations concerning fire, building, sanitation, plumbing, electrical, mechanical and zoning provided by the appropriate personnel from the Department's Division of Environmental Health, the Guam Fire Department, the Department of Public Works, the Department of Land Management, and the Department of Revenue and Taxation.

(e) Applicants shall maintain accurate records of all information and documents submitted to the Department which shall be readily available for review by the Department upon request during inspection.

(f) New applicants shall be responsible for ensuring that all documents and compliance reports, in addition to the application packet described in this § 1102.4 are submitted to the Department.

(g) Renewal applicants shall submit all documents and compliance reports no less than sixty (60) business days prior to the expiration of the license. Failure to do so may result in non-renewal of license pending submission of required documents and closure of operation upon expiration of current license.

(h) The Department shall conduct a licensing evaluation only after receiving a completed application, and all required documents and reports, to allow sufficient time of thirty (30) days

for the licensing worker to conduct inspections and reviews and complete a written report.

§ 1102.5. General Information Requirements.

(a) Admission procedures shall require that sufficient information and instruction from the parents or guardians be furnished to enable the staff members to make decisions or act on behalf of the child.

(b) The child care facility shall require a completed application with at least one (1) parent's or guardian's signature for each child to be kept on file.

(c) Prior to admission of a child to a child care facility, the licensee shall obtain in writing from the child's parents or guardians the following information:

(1) Completed application form for each child and a copy of child's birth certificate and a current photo;

(2) The child's full legal name, birth date, ethnic background, primary language spoken, current mailing and physical addresses, and preferred names;

(3) The name and physical and mailing addresses of the parents or guardians who are legally responsible for the child;

(4) Telephone numbers or instructions as to how the parents or guardians may be reached during the hours the child is in the child care facility;

(5) To the extent possible, the names, mailing and physical addresses, and telephone numbers of three (3) person(s) who shall assume responsibility for the child if for some reason the parents or guardians cannot be reached immediately in an emergency;

(6) Name, clinic, and telephone number of child's physician;

(7) Written authorization for emergency care, including provision of health insurance information;

(8) Child health report, that includes the child's immunization record, and other pertinent information

regarding the health of the child (i.e., last physical examination report, TB test);

(9) The child's parents' or guardians' current place of employment, address and phone number;

(10) plan for health care in case of an emergency (i.e., insurance provider, insurance number, doctor);

(11) authorization for medical treatment in case of an emergency when parent or guardian cannot be contacted;

(12) date of enrollment in child care facility;

(13) (A) written medical reports and health information shall be on file for each child, including a report of an annual physical examination, up-to-date immunization records, pertinent information regarding any particular health problems, or any specific instructions regarding care or feeding for the child.

(B) These records shall be kept confidential, and information provided only to the Early Childhood Director or the Early Childhood Director's authorized representatives operating the facility or other staff with a need to know, in the event of an emergency, or other staff with the written consent of the parents;

(C) conditional admissions may be granted, provided that the following conditions are met:

(i) the date of each appointment and name of the physician or health institution providing the physical examination must be placed in the child's health folder; and

(ii) proof of medical examination and/or administration of medical services are provided to the child care facility;

(iii) failure to complete the immunizations and clearances within one (1) month of enrollment shall result in the expulsion of the child until such time as the child is in compliance;

(14) eating and sleeping habits;

(15) toileting habits;

(16) allergies;

(17) fears and preferences;

(18) permission to administer medications, indicating frequency and dosage, must be submitted in writing by parents/guardians; and

(19) other information as required by the Division.

(d) The child care facility shall conduct a personal interview with the parent or guardian to verify other pertinent information provided on the child's overall behavior and to acquaint the parent or guardian with the child care facility's policies and procedures.

(e) The child care facility shall secure written permission from at least one (1) parent or guardian before taking children on excursions out of the facility.

(f) The child care facility shall require a "Parent/Guardian Authorization Form to Pick-Up Child" for each child and keep it current and on file.

(g) Information pertaining to an individual child or parents or guardians of the child shall not be disclosed to persons other than the Early Childhood Director or authorized staff members, unless the parents or guardians of the child submit a signed consent form granting written permission for the disclosure, or when an emergency arises necessitating release of the information.

(h) The parents or guardians shall be informed in writing of the child care facility's policy regarding disclosure of information.

§ 1102.6. Issuance of License.

(a) Upon completion of examination and satisfaction that the licensee and the child care facility has reasonably met all qualifications and standards prescribed for the specific category of child care facility, the Department shall issue a license.

(b) The license shall clearly state:

(1) The business name of the child care facility;

(2) The name(s) of the owner(s);

(3) The type of license issued;

(4) The category of the child care facility;

(5) The mailing address and physical location of the child care facility;

(6) Contact telephone number(s);

(7) The age and gender of children to be served;

(8) The capacity of the child care facility;

(9) The issuance and expiration date of the license;

(10) The license number; and

(11) Other conditions or limitations, as deemed necessary by the Department for the license.

(c) The license is non-transferable and shall be valid only with respect to the person, and physical location specified. It shall also be subject to review when there is a significant change in operating policies that affects the health, safety, and care of children and any changes in § 1102.6(b) above.

(d) The Department shall issue the following types of licenses:

(1) License. A license shall be issued to a facility which is found to be in conformity with child care rules and regulations.

(2) Provisional License. A provisional license shall be issued to a newly established or existing child care facility when the facility does *not* meet all licensing laws, rules and regulations. The facility must conform to the requirements on or before six (6) months for a license to be issued. In the event that the conditions are *not* met by the expiration date of the provisional license, the license *shall* be revoked, and the operations of the child care facility shall cease immediately.

§ 1102.7. Effective Date of License.

The effective date of a license shall be as follows:

(a) License.

(1) A license shall expire no later than two (2) years after the date of issuance.

(2) When a license is issued after a provisional license, the expiration date of the license *shall* be two (2) years from the date of issuance of the provisional license.

(3) The license shall be renewed only upon satisfactorily meeting the requirements for application, and the Department's approval.

(b) Provisional License. The expiration date of a provisional license may vary, as determined by the Director, based on a reasonable time for compliance with these rules and regulations, and shall not exceed six (6) months from the date of issuance.

§ 1102.8. Changes to Operation of the Child Care Facility or Group Child Care Home.

(a) The licensee must notify the Division in writing within twenty-four (24) hours or by the next working day, whichever comes first, of any significant changes planned in the operation of the child care facility, including services and staffing that directly or indirectly affects the operation of the program.

(b) No changes shall be made unless approved by the Division and all requirements for changes have been met as determined by the Department.

(c) If the change affects the continued operation of the child care facility, then necessary corrective action must be completed within the prescribed timeframe to come into compliance or sooner as determined by the Director.

(d) Significant changes include, but are not limited to, the following:

(1) relocation of the child care facility;

(2) renovation to existing structure;

(3) increase/decrease in child capacity;

(4) changes in staffing pattern;

(5) changes in policies and procedures;

(6) changes in ownership;

(7) changes in the name of the business operation; and

(8) changes to facility layout.

Such changes shall be taken into consideration at the discretion of the Department to determine status of the license for continued or discontinued operation of services upon meeting requirements and qualifications in accordance to these rules and regulations as deemed necessary.

(e) The Director may waive the maximum capacity of twelve (12) children for a Group Child Care Home for the emergency or temporary placement of children in the protective custody of Child Protective Services.

SOURCE: Adopted by P.L. 31-073:2 (Jun. 2, 2011). Subsection (e) added by P.L. 35-035:3 (Sept. 4, 2019).

§ 1102.9. Advertising.

(a) A child care facility licensed by the Department may publish advertisements of the services for which it is specifically licensed. All advertisements shall include the child care facility's license number.

(b) All child care facilities that are required to be licensed and have failed to do so are prohibited from advertising such services.

§ 1102.10. Displaying License.

The license shall be displayed at the child care facility in a prominent and conspicuous location as designated by the Director to be viewed by the public at all times.

§ 1102.11. Right of Entry, Inspection and Investigation.

(a) In exercising its authority to license child care facilities, the Department's designated personnel shall have the right of entry, inspection and investigation.

(b) The Division shall conduct inspections and investigation to ensure compliance with these rules and regulations and to ensure the quality of care of children in child care facilities.

(c) The Division shall review the qualifications of all staff members, review written policies and program provisions, and conduct inspections of the child care facility.

(d) In the event of a complaint or reason to believe that an unlicensed child care facility operation is being conducted, authorized representatives of the Department shall have the right to enter private property to verify and validate the allegations. The Guam Police Department shall render assistance to the Department in these cases, as needed.

(e) Authorized representatives of the Department shall be authorized to visit a child care facility at any time during the hours of child care operation for purposes of observing, monitoring and inspecting the facilities, activities, staffing and other aspects of the child care facility.

(f) The licensee shall cooperate with the Department by providing access to its facilities, records, staff, and children in care. Failure to comply with reasonable requests may constitute grounds for denial, suspension or revocation of the license.

§ 1102.12. Inspection Frequency.

An inspection of a child care facility shall be conducted at least once every twelve (12) months. Additional inspections shall be conducted as often as necessary for the enforcement of these rules and regulations.

§ 1102.13. Report of Inspections.

(a) Whenever an inspection of a child care facility is made, identified deficiencies shall be recorded on the inspection report as approved by the Director or his/her authorized representative. The inspection report shall summarize the requirements of these rules and regulations. Inspection remarks shall be written to reference, by section number, the section violated; shall state the correction to be made, indicating the time period(s) for correction, which shall be reasonable depending on the nature of the non-compliance; and the time required for correction.

(b) A copy of the inspection report shall be furnished to the person in charge of the child care facility at the conclusion of the inspection.

(c) The inspection report is a public document that *shall* be made available for public disclosure to any person who requests the documents pursuant to § 1113.1.

§ 1102.14. Posting.

Copies of the most current inspection report *shall* be posted adjacent to the license in a prominent and conspicuous location as designated by the Director, or the Director's authorized representative, to be viewed by the public at all times.

§ 1102.15. License Fees.

(a) The Department shall charge non-refundable fees as prescribed by the Department for the following (Appendix C):

(1) New License

(2) Renewal License

(3) Duplicate License

(4) Amended License

(5) Provisional License (New or Renewal)

(b) Fee schedule amendments shall be promulgated pursuant to Article 3, Rule-Making Procedures, Chapter 9, Title 5, Guam Code Annotated.

§ 1103. Organization.

§ 1103.1. General.

(a) Each licensee which is a person, partnership, corporation, limited liability corporation, limited liability partnership, or association shall be organized according to its legal status as required by local law and applicable rules and regulations.

(b) There shall be an internal structure which provides for an appropriate governing authority which is:

(1) responsible for the development and enforcement of operating policies, procedures of child care staff

employment, maintain adequate financial resources for the satisfactory care of children, and the total organization of child care services; and

(2) located so as to be familiar with, and accountable for, all aspects of the operation of the child care facility for and reasonably accessible to the Division.

§ 1104. Health and Safety.

§ 1104.1. General.

(a) The requirements for sanitation, health and safety shall be adopted and in compliance with the Division of Environmental Health, Department of Public Health and Social Services' applicable mandates and rules and regulations pertaining to child care facilities.

(b) No employer, owner, manager or person in charge or control, shall permit any person to enter the premises, knowing such person to have, or having reason to believe that he has,

(1) a disease in communicable form as set forth in Chapter 4 of this Title, or

(2) is a carrier of such disease; and

(3) no person shall work in a child care facility, whether in his own or another's employ, knowing himself to have, or having reason to believe that he has, any such disease.

(c) If an employer, owner, manager or person in charge or control suspects that any employee has any such disease in communicable form or is a carrier of such disease, he shall notify the Director immediately.

(d) Persons with cuts or sores shall not be allowed to handle food that may become contaminated by such handling.

(e) A placard containing the provisions of this Section shall be posted in a place where it will be seen by each employee.

§ 1105. Program Requirements.

§ 1105.1. General.

(a) Child care facilities shall implement developmentally

appropriate practices. The Department has developed voluntary early learning guidelines that facilities may use as a guide in developing and/or adopting a developmentally appropriate curriculum. (Appendix B: The Guam Early Learning Guidelines for Young Children Birth to 36 Months and the Guam Early Learning Guidelines for Young Children Ages Three to Five).

(b) Child care facilities that provide after school programs for older children shall implement age-appropriate curriculum.

(c) The program shall promote building positive relationships among children and adults to increase and/or maintain a sense of self-worth and responsibility to a community.

(d) The program shall implement a curriculum that is in harmony with goals that promote learning and development in the cognitive, social, emotional, language, aesthetic and physical areas.

(e) The program shall promote effective teaching strategies within its curriculum that reflect culture, language and developmental needs of children to increase learning and development.

(f) The program shall have in place, different assessments, formal or informal, that provide information on individual learning and development to ensure appropriate instruction, intervention, and/or evaluation that meet individual needs and program goals.

(g) The program shall promote health, safety, and nutrition where children and adults are protected from illness and harm.

(h) The program shall employ staff with the knowledge, skills, and abilities to foster children's learning and development and support families' needs and interests.

(i) The program shall build partnerships with families to support active involvement in their children's growth and development.

(j) The program shall connect with community resources to support program goals, such as health, curriculum, transitions, diversity, and inclusion.

(k) The program shall have well-maintained indoor and outdoor physical environments that are appropriate, safe, and accessible.

(l) The program shall have well-managed policies and procedures promoting a system where children, families, and staff receive high-quality experiences.

(m) The Early Childhood Director shall seek authorization from the parent or guardian of a child who has an Individualized Family Service Plan or Individualized Education Plan to assist in meeting the developmental and educational needs of a child with a disability.

§ 1106. Staff to Child Ratio.

§ 1106.1. General.

(a) The number of children per staff member shall not exceed:

Age of Child	Child:Staff Ratio	Effective Date of Compliance For Existing Child Care Facilities
Birth to 12 months	4:1	January 1, 2013
13 months to 2 years	7:1	January 1, 2013
13 months to 2 years	6:1	January 1, 2014
25 months to 3 years	10:1	January 1, 2013
37 months to 4 years	15:1	January 1, 2013
4 years and up	20:1	January 1, 2013

(b) Other hired staff members that do not provide direct care and education to children shall not be counted under the staff to child ratio (i.e. cooks, maintenance, and housekeeping personnel).

(c) Early Childhood Directors are not counted in the child to staff ratio.

(d) No child shall be left without adult supervision at any time. The staff to child ratio shall be maintained during all hours

of operation. Staff members shall be within sight and sound of each child in the child care facility at all times. Staff members who provide direct care and education to children shall not engage in other activities while performing their regular duties, unless used for educational purposes (e.g. light housekeeping duties).

(e) During nap time, the staff to child ratio must be maintained and physically present in the same space as the children's sleeping area.

§ 1106.2. Existing Child Care Facilities.

All existing child care facilities currently in operation shall be required to come into compliance with § 1106.1 on the effective dates of compliance as stated in § 1106.1(a).

§ 1106.3. New Child Care Facilities.

(a) A new child care facility is any person or entity that is issued a new license to operate a child care facility after the promulgation of these rules and regulations.

(b) A new child care facility shall be required to come into compliance with § 1106.1 upon issuance of a license to operate, and the effective dates of compliance stipulated in § 1106.1(a) are applicable to the new licensee.

§ 1107. Admissions.

§ 1107.1. General.

(a) Operators of child care facilities shall provide appropriate care to help the child grow and develop physically, mentally, socially, emotionally, and spiritually at his or her own pace, ensuring the child's overall welfare.

§ 1107.2. Illness and Communicable Disease Control.

(a) A general health screening and inspection shall be conducted daily on each child as soon as possible after the child enters the child care facility and whenever a change occurs while that child is in care.

(1) Information on each child shall be gathered by completing the health screening and inspection, by inquiring with the child's parents, and when possible, through a

conversation with the child.

(2) A record of any and all concerns shall be documented in writing.

(3) The health screening and inspection *s*hall address:

(A) observed changes in behavior or appearance from behaviors observed during the previous day's attendance; and

(B) other signs or symptoms of illness (such as fever, drainage from eyes, vomiting, diarrhea, etc.)

(b) Isolation Area. Each child care facility shall have a designated isolation area for a child who becomes ill at the facility.

(1) Such area shall be adequately ventilated and equipped with a bed, mat, or cot and materials that can be easily sanitized.

(2) Linens and disposables shall be changed after each use with used linens and disposables contained in a closed container in the isolation area until it can be cleaned or disposed of properly.

(c) Any child showing signs of an infectious illness must be sent to the isolation area to be kept separate and apart from the other children.

(1) The parent or guardian must be notified immediately to arrange alternative measures for the child's care.

(2) A staff member or an available responsible adult shall remain with the child at all times.

(d) (1) The rules and regulations of the Department on communicable diseases shall be followed where children show symptoms of communicable diseases.

(2) The child care facility shall post a communicable disease placard subject to the provisions of § 2414 of Title 10 GCA, Chapter 2, Article 4 on communicable diseases.

(e) Children who have been determined to have an infectious illness or communicable disease shall not return to the child care

facility without medical authorization.

(f) A child may be excluded from the child care facility (i.e. sent home) as soon as possible if the child exhibits any condition or illness as listed in the current communicable disease report, or illnesses as recommended and listed in guidelines developed by the American Academy of Pediatrics for exclusion of children from the child care facility. (www.aap.org)

§ 1107.3. Immunizations.

(a) All children attending a child care facility shall receive immunizations according to the Department's requirements in conformity with the Advisory Committee on Immunization Practices (ACIP), U.S. Centers for Disease Control and Prevention (CDC), Department of Health and Human Services, and the American Academy of Pediatrics (AAP), unless excluded from the immunization requirements due to religious exemptions (as approved by the Department) or medical contraindications (as certified by a Guam licensed medical physician). (See Appendix D for Recommended Immunization Schedules)

(b) Exemption from immunization for religious belief shall be documented by a written, signed and dated statement from the child's parent or guardian, that such vaccination or immunization would be against their religious belief and would not constitute a contagious health risk for the public at large, as certified by the Director. (P.L. 24-154, § 3322.a.)

(c) Exemption from immunization for any medical reason shall be documented by a written, signed, and dated statement by a Guam licensed medical physician that said child should be exempt from this Section where such medical contraindication to his or her receiving a specific vaccine exists. (P.L. 24-154, § 3322.a.) The child care facility has the right to exclude children who do not meet the immunization requirements as stated under Subsection (a) of this Section.

(d) Original statements (not copies) shall be kept in the child's record at the Bureau of Communicable Disease Control of the Department for compliance purposes. A copy of the certificate for medical and religious exemptions shall be included in the child's record in the facility.

(e) Child care facilities shall require parents or guardians to ensure their children receive all follow-up immunizations needed to complete the recommended series. A copy of the immunization records *shall* be filed in the child's record at the Bureau of Communicable Disease Control of the Department.

(f) Parents or guardians shall be given a grace period, not to exceed thirty (30) calendar days from the last assessment of the child's immunization record, to obtain required immunization(s) in the recommended series.

§ 1107.4. Testing for Tuberculosis.

No child shall be permitted to attend a child care facility unless they have on file with the Early Childhood Director of the child care facility a report of a Tuberculosis (TB) Skin Test result.

(a) If the child is entering from the United States (its states or territories), such test must have been conducted within one (1) year prior to enrollment. If the child is entering from an area other than the United States (its states or territories), such test must have been conducted within six (6) months prior to enrollment.

(b) If a child has had a positive TB Skin Test, a Certificate of TB Evaluation must be obtained from the Department. If this Certificate indicates that the child is TB contagious, the child shall be permitted entrance to the child care facility only after he or she is certified as non-contagious by the Department.

§ 1107.5. CPR and First Aid.

(a) CPR. At least two (2) staff involved in providing direct care and education of children shall complete and maintain certification requirements in pediatric first aid, and safety and management of blocked airway and rescue breathing, including cardio pulmonary resuscitation (CPR). At least one (1) certified staff shall be on the premises at all times children are in their care.

(b) First Aid Kit. At least one (1) first aid kit containing materials to administer first aid must be maintained on the premises of all child care facilities at all times and wherever children are in care, including field trips and outings away from

the facility. A complete first aid kit must also be present in vehicles used in the transportation of children during field trips and outings away from the facility.

(1) Each kit shall be in a closed container and labeled "First Aid."

(2) The kits shall be accessible to the staff members at all times and kept out of the reach of children.

(3) Each first aid kit shall be replenished and updated on a regular basis. Contents with elapsed expiration dates shall be discarded in a proper manner.

§ 1107.6. Medication.

No medication shall be given without the signed consent of a parent, and prescription drugs shall be given only when prescribed for a child by a licensed physician.

(a) Prescription and non-prescription medication brought to the child care facility by the parent or guardian shall:

(1) be in the original container;

(2) be properly labeled;

(3) be dispensed according to written directions on the prescription label or printed manufacturer's label;

(4) be stored separately and locked out of children's reach; and

(5) be stored at the proper temperature as required by the manufacturer.

(b) Prescription medication must have a label stating the name of the physician, the child's name, the name of the medication, and medication directions.

(c) For the purposes of dispensing non-prescription medication that is not brought in by the parent, in the event of an emergency non-prescription medication can only be dispensed if the facility has prior written authorization from the parent or guardian to do so. Any medication dispensed

under these conditions must be documented in the child's file, and the parent or guardian must be notified on the day of occurrence.

(d) If the parent or guardian notifies the child care facility of any known allergies to medication, written documentation must be maintained in the child's file, must be shared with the staff, and must be posted with the stored medication.

(e) Any medication administered by any staff of the child care facility shall be documented and recorded in a medication administration log.

§ 1107.7. Food and Nutrition.

(a) Food and Nutrition Policies and Plans. The facility shall have a food handling, feeding, and nutrition plan that addresses the following items and delegates responsibility for each:

(1) food handling, preparation, and service;

(2) staffing; and

(3) nutrition education for parents, staff, and children.

(b) Meals Prepared and/or Served On-Site.

(1) A child care facility that prepares and cooks meals for children shall provide adequate nutritious food appropriate to the age of the child at normal meal time intervals, and shall follow the U.S. Department of Agriculture's (U.S.D.A.) Food and Nutrition Guidelines and Food Guide Pyramid for Young Children (Appendix E) based on the latest recommendations adopted by U.S.D.A. For current and updated information on nutrition guidelines recommended by the U.S.D.A., please refer to their website at www.usda.gov.

(2) Meal and snack menus shall be planned, written and posted at the beginning of each week.

(A) Menus shall be dated and posted in the food service area and in a conspicuous area easily accessible

to parents or guardians.

(B) Any menu substitution shall be noted on the menu.

(c) A child care facility where parents or guardians provide meals for their children should promote an understanding of the importance of nutritious meals and snacks, as recommended by the U.S.D.A. Food and Nutrition Guidelines.

(d) (1) If a special diet is required for a child by a physician, a copy of the physician's order, a copy of the diet and a sample meal plan for the special diet shall be maintained in the child's file.

(2) If the parent or guardian notifies the child care facility of any known food allergies, written documentation must be maintained in the child's file.

(3) Special food restrictions must be shared with the staff, and must be posted in a conspicuous location in the kitchen area to serve as a reminder for staff members.

(e) Food Service.

(1) Children shall be supervised during all meal times. All food shall be served in individual containers for each child.

(2) Infants shall be fed by a staff member, and at *no* time shall propped bottles be permitted when feeding infants. There shall be no automatic feeding devices unless medically prescribed. All bottles shall be individually labeled with the child's name.

(3) Heated foods and bottles must be tested before feeding to ensure heat is evenly distributed, and to prevent injury to children.

(4) Child care facilities shall provide sufficient seating so that children are seated at tables for meals.

(5) Food shall not be used as a reward or as punishment.

§ 1108. Materials and Equipment.

§ 1108.1. General.

The selection, quantity, arrangement and use of available materials and equipment shall be age-appropriate, durable, meet the recommendations of the U.S. Consumer Product Safety Commission (CPSC), including the latest version of the CPSC Handbook for Public Playground Safety (Appendix F), and meet the recommendations of the Americans with Disabilities Act (ADA) for all children, including children with special needs.

(a) The DPHSS shall review Appendix F and develop rules and regulations based upon the U.S. Consumer Product Safety Commission Handbook for Public Playground Safety which should be applicable for Guam, within one hundred twenty (120) days of the enactment of this Act.

(b) The rules and regulations shall be promulgated pursuant to the AAA rule-making procedures.

(c) The materials and equipment shall:

(1) provide opportunities for indoor or outdoor play, exploration, expression, experimentation and discovery;

(2) provide opportunities for learning concepts and skills in different developmental domains;

(3) represent the diversity of children, families, culture, age, gender, language and abilities;

(4) provide safe, but challenging learning opportunities where problem solving is practiced; and

(5) support the curriculum, meet the goals and objectives of the program, and foster desired outcomes for children.

§ 1108.2. Storage Spaces.

(a) Storage spaces for individual storage of children's clothing and personal belongings *shall* be available and labeled.

(b) Storage spaces for accessible play materials and equipment used by the children shall be available.

(c) Storage spaces for other equipment, materials, and supplies used by staff shall be available, but secure and out of children's reach.

§ 1108.3. Sleeping Equipment and Bedding.

The following sleeping equipment shall be safe, sturdy, clean, age-appropriate and available:

(a) an individual bed, cot, crib, sleeping bag, mat, or pad, for each child who rests; and

(b) a clean sheet or cover to be used on the sleeping equipment for each child.

§ 1109. Personnel.

§ 1109.1. General.

(a) There shall be a sufficient number of qualified staff to carry out the program of the child care facility at all times.

(b) Child care facilities shall develop and record policies pertaining to personnel practices.

(c) The child care facility shall ensure that all new employee hires, including submission of clearance documents, are reported to the Division prior to their employment.

§ 1109.2. Information on Current Staff Members Inclusive of Cooks and Maintenance Personnel.

(a) The following information shall be supplied to the Division for all staff members:

(1) name, date of birth, age, home address and telephone number;

(2) education transcripts and/or Early Childhood Care and Education (ECCE) certificate;

(3) work experience;

(4) physician's certification of examination form;

(5) health certificate(s);

(6) police and criminal court clearances;

(7) consent of release to perform a check of the Child Abuse and Neglect Registry Clearance; and

(8) other information as requested by the Division.

(b) A listing of all practicum students and/or volunteers who serve twenty (20) or more hours per week shall also be supplied to the Division.

§ 1109.3. Responsibilities and Qualifications for Early Childhood Director.

(a) Responsibilities of Early Childhood Director. There shall be a responsible Early Childhood Director, or their designee, in charge of the child care facility at all times during their hours of operation.

(1) To be in charge means that the responsible person is on the premises, and available to staff, parents or guardians, and children. It precludes outside employment which interferes with these duties.

(2) The Early Childhood Director shall not be a full-time teacher or early childhood provider.

(3) The Early Childhood Director shall be responsible for the overall administration of the child care facility's policies and procedures.

(4) When the Early Childhood Director is required to be absent temporarily from the child care facility, arrangements shall be made for the Early Childhood Assistant Director, or a staff member who is at least twenty-one (21) years of age and meets the requirements of no less than an Early Childhood Lead Provider, to act as a substitute for a maximum of one (1) month. After one (1) month, the Early Childhood Director shall hire an Acting Director if prolonged absence is necessary.

(b) Qualifications of Early Childhood Director. The qualifications for the Early Childhood Director shall be as follows:

(1) The Early Childhood Director shall be at least twenty-one (21) years of age.

(2) The Early Childhood Director shall have education and experience which will provide the knowledge, skills, and attributes and qualities necessary to carry out an effective program of quality child care as set forth in these laws, rules and regulations.

(3) The minimum education and training requirement for an Early Childhood Director is Level 3 Early Childhood Master Provider/Early Childhood Director as indicated in Guam's Plan for Professional Development. (See Appendix A).

§ 1109.4. Responsibilities and Qualifications for Early Childhood Assistant Director.

(a) Responsibilities of Early Childhood Assistant Director. The Early Childhood Assistant Director shall be responsible and work with or alongside the Early Childhood Director to carry out the program of the facility under the guidance of the Early Childhood Director.

(b) Qualifications of Early Childhood Assistant Director. The Early Childhood Assistant Director *shall* meet the same minimum education and training requirements as an Early Childhood Director as stated in § 1109.3(b)(3).

(c) The Early Childhood Assistant Director shall be at least twenty-one (21) years of age.

§ 1109.5. Requirements of Staff Members. Each staff member shall be qualified through training, experience, skills, and education, as indicated in Guam's Plan for Professional Development. (Appendix A).

(a) Educational requirements of staff members shall be as follows (as referenced in Guam's Plan for Professional Development):

> By 2014, twenty-five percent (25%) of early childhood providers employed by the child care facility shall meet the requirements of a Level 2 Early Childhood Lead Provider.

(b) (1) All staff members shall have a physical

examination from a licensed physician indicating that the individual is in good health, and free from highly contagious diseases and any disability which would limit his/her ability to adequately care for children.

(2) This physical examination report shall be renewed annually, and shall be kept on file in the facility.

(c) All staff members shall have a valid health certificate pursuant to Title 10 GCA, Chapter 22, and applicable rules and regulations.

(1) These documents shall be renewed annually, with copies prominently posted in the facility as required.

(2) Each staff member must comply with having their health certificate on their person at all times while working, as required by applicable rules and regulations.

(d) (1) Operators of child care facilities must obtain a valid sanitary permit pursuant to Title 10 GCA, Chapter 21, and applicable rules and regulations.

(2) This permit shall be renewed annually, and prominently posted in the facility as required.

(e) (1) The Early Childhood Director shall provide information on workshops, seminars, training sessions or courses available to all staff members to encourage staff growth and development.

(2) Training topics should include, but is not limited to, one (1) or more of the following topical/competency areas (as referenced in Guam's Plan for Professional Development):

(A) Child Development Theory and Practical Application;

(B) Healthy and Safe Environments;

(C) Adaptations and Modifications;

(D) Working with Families;

(E) Observation and Assessment; and

(F) Professional Conduct and Ethics.

(f) Volunteers and practicum students are required to have a valid health certificate and physical examination prior to providing services.

(g) Licensees shall be responsible for ensuring that licensees and all staff members are free of serious emotional problems which limit their ability to care for children, and that they demonstrate evidence of the ability to deal effectively with practical problems of daily living and of child care.

(h) Licensees and all staff members shall be of reputable and responsible character, and shall not have a criminal history record, employment history or background which poses a risk to children in their care, such as the following:

(1) conviction of a crime involving violence, alcohol or drug abuse, sex offense, offense involving children and any other conviction, the circumstances of which indicate that the applicant or employee may pose a danger to children;

(2) the type of criminal offense, when it occurred, and evidence of rehabilitation may be considered in determining whether the criminal history record poses a risk to the health, safety or well-being of children in their care;

(3) an employment history indicating violence, alcohol or drug abuse and any other violation of employer rule or policy, the circumstances of which indicate that the applicant or employee may pose a danger to children;

(4) documented history of an individual who was found to be in non-compliance and violation of licensing laws, rules and regulations, and failed to conform to standards; and

(5) background information which shows that the

individual has been identified as the substantiated perpetrator of child abuse or neglect.

(i) Staff members directly responsible for the care and education of children shall have the following minimum qualifications:

(1) be at least eighteen (18) years of age or older; and

(2) complete requirements for a Level 1 Initial Early Childhood Provider within twelve (12) months of employment as indicated in Guam's Plan for Professional Development.

(j) Staff members shall demonstrate that they have:

(1) the capacity to perform the duties required for the care and education of children;

(2) the ability to respect the individual child's uniqueness and level of adjustment into the child care facility; and

(3) the ability to work positively with children, co-workers and parents, and deal effectively with practical problems of daily living.

§ 1110. Group Child Care Homes.

§ 1110.1. Group Child Care Homes.

Applicability. All the rules and regulations of this Chapter are applicable to Group Child Care Homes, except for § 1109.3 - § 1109.5, et seq. All Group Child Care Homes shall comply with the following:

(a) Requirements for Group Child Care Home Providers. The requirements for group child care home providers shall be as follows:

(1) demonstrate and maintain the capacity to perform the duties required for the care and education of children;

(2) demonstrate and maintain the ability to respect

the individual child's uniqueness and level of adjustment;

(e) demonstrate and maintain the ability to work harmoniously with parents and other co-workers; and

(4) demonstrate and maintain an understanding of developmentally appropriate practices in early childhood education.

(b) Qualifications of Group Child Care Home Providers. The qualifications for group child care home providers shall be as follows:

(1) Child care providers shall be free of serious emotional problems that interfere with their ability to care for children, and must demonstrate evidence of ability to deal effectively with practical problems of daily living, child care, and work positively with children, co-workers and parents.

(2) Child care providers shall have the following minimum qualifications:

(A) be at least twenty-one (21) years of age or older (each additional provider in a group child care home shall be at least eighteen [18] years of age);

(B) receive fifteen (15) hours of annual training in the areas of, but not limited to, health, safety, nutrition, and child development; and

(C) maintain certification in Pediatric CPR and Pediatric First Aid.

(3) (A) Child care providers in contact with children must have a physical examination from a licensed physician indicating that the individual is in good health, and free from highly contagious diseases and any disability which would limit his/her ability to care for children.

(B) This physical examination report shall be renewed annually, and shall be kept on file in the

group home facility.

(4) (A) Child care providers shall have a valid health certificate pursuant to Title 10 GCA, Chapter 22, and applicable rules and regulations.

(B) These documents shall be renewed annually, and kept on file and/or prominently posted in the facility as required.

(5) Child care providers, and all other adult members in the home, shall obtain a Police Clearance, a Criminal Court Clearance listing the types of criminal convictions, if any, and a Clearance from the Child Abuse and Neglect, and Sex Offender Registries.

§ 1111. Reporting Requirements.

§ 1111.1. Reporting Child Abuse and Neglect.

(a) Pursuant to the Child Abuse and Neglect Reporting Act (Title 19 GCA, Chapter 13, Article 2 §13201), a person required to report suspected child abuse or neglect is defined as:

"Any person who in the course of his or her employment, occupation, or practice of his or her profession, comes into contact with children. Such persons shall report when they have reason to suspect on the basis of their medical, professional, or other training and experience that a child is an abused or neglected child."

(b) (1) No person may claim "privileged communication" as a basis for his or her neglect or failure to report suspected child abuse or neglect, or to provide the Division's Child Protective Services Section, or the Guam Police Department, with required information.

(2) Such privileges are specifically abrogated with respect to reporting suspected child abuse or neglect and providing information to the Department.

(c) The child care facility shall require each staff member to be knowledgeable and informed of their individual mandatory responsibility to report all incidents of child abuse or neglect to

the Division's Child Protective Services Section accordingly.

(d) At the time of admission, the child care facility shall provide to the child's parent or guardian information that explains how to report suspected child abuse or neglect, and that the facility is mandated to report any suspected child abuse or neglect to the proper authorities.

§ 1111.2. Reporting Licensing Complaints.

(a) The child care facility shall provide written information detailing the steps to report any licensing, health, and safety violations against a child care facility at the time of admission, to the child's parent or guardian, and to potential staff members prior to recruitment.

(b) The information must include the name, mailing address, and telephone numbers of the Division's Child Licensing Program.

§ 1112. Display of Documents.

§ 1112.1. General.

The following documents shall be posted in a prominent and conspicuous location, as designated by the Director, to be viewed by the public at all times in the child care facility:

(a) License to Operate a Child Care Facility;

(b) Sanitary Permit;

(c) Copy of Health Certificates;

(d) Daily Schedule;

(e) Fire Evacuation Plan;

(f) Fire Extinguisher Signs;

(g) Earthquake Preparedness Procedures;

(h) Exit Signs;

(i) Daily Menu (If applicable);

(j) Inspection reports conducted by the Department of Public Health & Social Services, Guam Fire Department, Department of Public Works, and Department of Land

Management;

(k) Grading Placards issued by the Division of Environmental Health;

(l) No Smoking Signs;

(m) First Aid Kit Signs;

(n) Communicable Disease Prevention Poster;

(o) Emergency phone numbers, to include, but *not* be limited to, the fire department, the police, and emergency medical services, and be placed conspicuously next to all operating phone lines; and

(p) Other emergency procedures established by the child care facility.

§ 1113. Records Open to the Public.

§ 1113.1. Public Documents.

(a) The Division's licensing records are considered open records and are available to the public.

(b) Responses to requests for records are conducted by the Division in conformance with the guidelines of the Sunshine Reform Act of 1999 (Title 5 GCA, Chapter 10, Article 1).

(c) Exceptions are:

(1) the name and identifying information of someone who reports an alleged violation of the laws, or rules and regulations, or who make allegations during an investigation unrelated to the original report;

(2) information identifying children's names;

(3) criminal history information;

(4) reports and records received from other agencies including police, court clearances and child protection reports;

(5) certain confidential information from other agencies;

(6) personal references requested by the Division;

(7) scholastic records, health reports, physical, social or psychological;

(8) information about pending court cases; and

(9) information about an abuse or neglect investigation that has *not* been completed.

§ 1114. Transportation Provisions.

§ 1114.1. General.

When transportation is provided by a child care facility, children shall be protected by adequate supervision, safety precautions, and liability and medical insurance coverages, as follows:

(a) The vehicle and driver providing transportation shall be in compliance with all relevant motor vehicle and traffic laws.

(b) During any field trip or excursion operated or planned by the child care facility, the staff to child ratios as provided in § 1106.1(a) shall apply.

(c) Children shall be instructed in safe transportation conduct as appropriate for age and stage of development.

(d) Infants, toddlers, and preschoolers transported in vehicles by staff members, either to or from the child care facility, or for any program activities, shall be properly secured in an age and size appropriate child passenger restraint system, approved safety belts, or safety harnesses, which meets federal motor vehicle safety standards and in accordance with the manufacturer's operating instructions as mandated by Guam law.

(e) Children shall not be allowed to ride in the back of pick-up trucks, or in jeeps or other open-air vehicles that are not fully enclosed.

(f) Children shall be supervised in the vehicles at all times.

§ 1115. Communication Between Parents and Early Childhood Providers.

§ 1115.1. General.

(a) Early childhood providers shall communicate and maintain an open door policy with parents or guardians including, but not limited to, the following information:

(1) information and instructions related to the child; and

(2) health, safety, child development, or behavior of the child to the parents or guardians.

(b) Parents or guardians are encouraged to notify the child care facility immediately of a concern which should be addressed immediately and expect feedback from the child care facility in a timely manner, no later than two (2) business days.

§ 1116. Parental Accessibility.

§ 1116.1. General.

(a) During the hours of operation, a child care facility shall allow access by parents or guardians having legal custody of a child in care to those areas of the child care facility that is licensed for child care. This is to allow parents or guardians the opportunity to observe their child and the operation of the child care facility.

(b) Access to a child care facility by parents or guardians with legal custody of children in care does not have to be arranged in advance with the child care facility.

§ 1116.2. Refraining from Releasing Children to Family.

(a) If a parent or authorized person is found to be behaving in a way that impairs that person's ability to care for the child (i.e., drunken behavior, belligerent), or lacks suitable equipment (i.e., an appropriate child passenger restraint system), the child care providers shall refrain from releasing the child to the family.

(b) Child care providers shall contact appropriate law enforcement agents, as needed.

§ 1117. Non-Discrimination.

§ 1117.1. General.

(a) A child care facility shall not discriminate against any

person on the grounds of race, color, national origin, age, sex, religion or disability in admission to, participation in, or receipt of the services and benefits of any of its programs and activities, or in employment.

(b) Furthermore, a child care facility shall not deny or provide for the access and accommodation of persons with disabilities in compliance with the Americans with Disabilities Act of 1990 (Title 42 United States Code, Section 12101).

(c) Child care facilities shall also conform to any Guam laws and applicable rules and regulations governing persons with disabilities and other protected groups.

§ 1118. Denial, Suspension, or Revocation of License.

§ 1118.1. Denial, Suspension, or Revocation of License.

(a) The Department may suspend any license to operate a child care facility under, but *not* limited to, the following conditions:

(1) (A) Any environmental health violation under Title 10 of the Guam Code Annotated, Chapters 20 through 40, and those applicable rules and regulations.

(B) The Director has general supervision of environmental health and shall be responsible for carrying out the provisions of this Code;

(2) If the operation of the child care facility otherwise constitutes a substantial or serious hazard to public health;

(3) If the applicant or licensee failed to comply with these rules and regulations, the corrective action in the inspection report, Notice of Adverse Action, and suspension;

(4) If the applicant or licensee failed to pay a fine after either failing to appeal the assessment of a fine within the prescribed time or after a hearing where assessment of a fine was upheld; or

(5) If the applicant or licensee submitted any misleading or false statement or report required in these rules and regulations.

(b) The Department may deny or revoke any license to operate a child care facility under, but not limited to, the following conditions:

(1) Violating the provisions of § 2408 of the Child Welfare Services Act (Title 10 GCA, Chapter 2 Article 4);

(2) Upon a substantial or serious violation under these rules and regulations, which affects the health and safety of children in care by a child care facility or by any of its employees;

(3) Any substantiated charge of child abuse or neglect;

(4) The applicant or licensee submitted any misleading or false statement or report required in these rules and regulations;

(5) The applicant or licensee refused to submit any report or make available any records required under § 1102.0 of these rules and regulations;

(6) The applicant or licensee refused to admit, at a reasonable time, any employee of the Department authorized by the Director to investigate or inspect, in accordance with § 1102.11 of these regulations; or

(7) The applicant or licensee failed to obtain a license prior to opening the child care facility.

§ 1118.2. Effect.

(a) (1) Upon suspension or revocation, the licensee shall immediately return the license to the Division, and the licensee shall immediately cease all operations.

(2) The licensee must provide its roster of enrolled children and emergency contact numbers to the Division's inspector, who shall ensure that all measures are taken to contact the parents/guardians of all the children to be picked up.

(b) Whenever a license is suspended, a provisional license may be issued to resume operation.

(1) The child care facility must submit a corrective

action plan within the prescribed time frame to come into compliance.

(2) When the child care facility submits documentation or all corrective actions have been taken, the license will be upgraded back from its provisional license to license status.

(c) When a licensee fails to come into compliance after being issued a provisional license, the license shall be revoked.

(1) A licensee shall not qualify for a license from the Department for one (1) year after a final decision has been rendered to revoke the license.

(2) Thereafter, the licensee shall be eligible to operate a child care facility only if compliance of these rules and regulations can be demonstrated.

(d) The licensee shall not be eligible to operate a child care facility if convicted of a crime against persons, and/or listed in the Child Abuse Registry and/or the Sex Offender Registry as indicated in § 1109.5 (h).

§ 1118.3. Suspension in an Emergency.

(a) (1) The Department may suspend any license without a prior hearing if failure of the licensee to comply with any these rules and regulations results in an emergency situation which endangers the life, health, or safety of the children or the staff present in the child care facility.

(2) The licensee shall be notified of any such suspension of a license by written notice that is either hand-delivered, mailed via first class mail, certified or registered, return receipt requested, or delivered by courier requiring a signed receipt.

(b) If the Department receives a request for a hearing within five (5) business days following the licensee's receipt of such notice, a hearing shall be held within ten (10) business days of the receipt of such request for hearing. The suspension shall remain in effect pending such a hearing.

(c) (1) The sole issue at the hearing shall be whether the Department has reasonable cause to believe that the

licensee's failure to comply with these rules and regulations resulted in an emergency situation which endangered the life, health, or safety of the children or the staff present in the child care facility.

(2) If a report indicates that any abuse or neglect occurred in a licensed child care facility or during participation in a licensed child care facility related activity, it shall be prima facie evidence that an emergency existed.

(d) The licensee shall notify the parents or guardians of all children enrolled in the child care facility, and all funding agencies of any such suspension of a license within two (2) business days of the receipt of notice from the Department.

(e) Upon suspension, the licensee *shall* immediately return the license to the Division and cease providing services.

§ 1118.4. Follow-up to Enforcement Action.

(a) Upon the expiration of the timeframe(s) prescribed in a corrective action plan for compliance, inspection report, or notice of adverse action, the Division staff will determine compliance by visiting the child care facility or program, reviewing documents, and/or verifying compliance through whatever other means the Division deems suitable.

(b) If a determination of non-compliance is made, the Division shall request an additional corrective action plan or notice of adverse action. The Department may, in addition to any of the actions listed above, levy an administrative penalty; or deny, suspend or revoke a license.

(c) These rules and regulations shall in no way limit the Department's authority to visit any child care facility subject to licensure or approval by the Department to determine compliance with these rules and regulations, nor do these regulations limit the Department's authority to deny, suspend or revoke a license.

§ 1119. Right to Appeal.

§ 1119.1. General.

(a) Any child care facility receiving a notice indicating that the Director has initiated an action to deny, suspend or revoke its

license shall result in the licensee being informed of its right to appeal and the procedures to file an appeal.

(b) Except for a suspension in an emergency as outlined in § 1118.3 of these rules and regulations, a child care facility affected by an adverse action may initiate an appeal by means of a written request to the Department within ten (10) working days after the licensee has been served by written notice that is either hand-delivered, mailed via first class mail, certified or registered, return receipt requested, or delivered by courier requiring a signed receipt.

(c) Failure to request within the timeframe will constitute a waiver of right to a hearing.

§ 1120. Hearing.

§ 1120.1. General.

(a) Except for a suspension in an emergency as outlined in § 1118.3 of these rules and regulations, whenever a license is to be denied, suspended or revoked, the licensee shall be notified in writing through a Notice of Adverse Action by the Director ten (10) days prior to the effective date of the agency's action to deny, suspend or revoke the license.

(1) An opportunity for a hearing will also be provided upon service of the Notice of Adverse Action for an administrative penalty.

(2) A child care facility may request for a hearing on any actions taken of denial, suspension or revocation taken by the agency.

(b) (1) Upon receipt of a request for a hearing, the Director shall arrange to hear the appeal of the child care facility within twenty (20) working days following the receipt of the written request.

(2) The Director shall make a final determination to repeal or stay any denial, suspension or revocation described in § 1118.1 upon the completion of a hearing.

(c) If no written request for a hearing is filed within ten (10) working days of receipt of the notice, the Department's

disciplinary action is sustained as noted in the Notice of Adverse Action, and the child care facility will be notified of the decision in writing.

§ 1121. Serving of Notices.

§ 1121.1. General.

(a) A notice provided for in these rules and regulations is properly served when it is delivered

(1) to the licensee or

(2) to the person in charge of the child care facility, or

(3) when it is hand-delivered, or

(4) mailed to the licensee via first class mail, certified or registered, return receipt requested, or

(5) delivered by courier requiring a signed receipt to the last known address of the licensee.

(b) A copy of the notice shall be filed in the records of the Bureau of Social Services Administration, Division of Public Welfare, Department of Public Health and Social Services.

§ 1122. Severability.

§ 1122.1. General.

If any phrase, clause, sentence, section, subsection, provision, or part of these rules and regulations or its applicability to any person or circumstance, if for any reason is held to be unconstitutional or invalid, the remaining portions of these rules and regulations, or the application of these rules and regulations to other persons or circumstances shall not be affected.

§ 1123. Child Care Fund.

§ 1123.1. Child Care Revolving Fund; No Commingling.

(a) As provided pursuant to § 2416 of Article 4 of Chapter 2, Division 1, Title 10, Guam Code Annotated, there is created, separate and apart from other funds of the government of Guam, a reserve fund known as the Child Care Revolving Fund (the Fund).

(b) The Fund shall not be commingled with the General Fund or any other funds of the government of Guam and shall be deposited into a separate account.

§ 1123.2. Expenditures from the Fund.

(a) All proceeds from fees and fines collected pursuant to these rules and regulations shall be deposited into the Fund and shall be expended by the Department solely in support of the functions of the Division of Public Welfare of the Department of Public Health and Social Services, including, but not limited to:

(1) recruitment of child care licensing staff;

(2) professional development;

(3) training;

(4) technical assistance and tuition assistance for child care professionals and licensing staff; and

(5) quality care and education of children.

(b) Any unexpended balance of the Fund shall be carried over to the next fiscal year and shall not decrease the local budget based on the fees and fines collected in this Fund from the previous budget year.

(c) Funds shall be expended solely for the purposes provided for pursuant to Article 4 of Chapter 2, Division 1, Title 10, Guam Code Annotated, and these Rules.

(d) The Department shall report monthly and maintain full compliance with all financial reporting requirements of the government of Guam pursuant to applicable law.

(e) Reports shall be submitted to *I Liheslaturan Guåhan* via the office of *I Maga'lahen Guåhan* [Governor of Guam].

§ 1123.3. No Transfer Authority.

The money placed in the Fund is not subject to any transfer authority of *I Maga'lahen Guåhan* [Governor of Guam].

§ 1124. Review.

§ 1124.1. General.